

Anurag Bansal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 March 2020 · Writ - C No. 8572 of 2020 · Writ - C No. 8572 of 2020 · **Writ dismissed; petitioner relegated to Supply Code clause 6.5.**

HEADNOTE

The Allahabad High Court declined to quash a recovery citation for electricity arrears of about Rs. 23.23 lakh or to direct instalments without collection charges. After the licensee invoked clause 6.5 of the U.P. Electricity Supply Code, 2005, and the Court recorded that no substantial amount had been deposited despite a demand notice, the writ was dismissed, leaving the petitioner to pursue his Code remedy if so advised.

FACTUAL SUMMARY

Anurag Bansal purchased from Pradeep Kumar Kaushal a property on which an electricity connection stood. A recovery citation was issued for electricity dues of about Rs. 23.23 lakh plus collection charges. He sought to quash the citation and a direction to accept the amount in easy instalments without collection charges and to furnish a correct bill, saying he was ready to pay in instalments. The licensee opposed, invoking clause 6.5 of the U.P. Electricity Supply Code, 2005. Despite a demand notice, no substantial amount had been deposited.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bills — recovery citation — alternate remedy to writ

HOLDING

A writ seeking to quash a recovery citation for electricity arrears and to compel acceptance in instalments without collection charges will not be entertained where the licensee points to clause 6.5 of the U.P. Electricity Supply Code, 2005 and no substantial amount has been deposited after demand; the petitioner may pursue the Code remedy. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ

Writ against a recovery citation for electricity arrears dismissed; petitioner left to clause 6.5 of the Supply Code after the licensee invoked it, no substantial deposit having been made after demand. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION AND THE QUANTUM OF ELECTRICITY DUES

The writ was dismissed without examining the bill or the citation on merits. ¶ 1

NOT DECIDED — WHETHER A SUBSEQUENT PURCHASER OF THE PREMISES IS LIABLE FOR THE PREDECESSOR'S ELECTRICITY ARREARS

¶ 1

NOT DECIDED — ENTITLEMENT TO PAY IN INSTALMENTS WITHOUT COLLECTION CHARGES, OR TO A CORRECTED BILL STATEMENT

¶ 1